

DEPARTMENT OF THE TREASURY
SF 1009 - FAR 13.106-1(b) SOLE SOURCE JUSTIFICATION FOR
ACQUISITIONS AT OR BELOW THE SIMPLIFIED ACQUISITION THRESHOLD

1. Identification of the requesting activity and contracting activity.

The requiring activity is the Internal Revenue Service (IRS) Criminal Investigation (CI) Advanced Analytics and Innovation, Data Management and Governance (AAI:DMG:DPC) and the contracting activity is the IRS Office of Procurement.

2.a A description of the supplies or services required to meet the agency's needs.

Maintenance and technical support for four OPEX Falcon Scanners
Period of Performance – 03/03/2026 - 03/02/2027 – Qty 6

2.b Name and business size of the vendor. OPEX Corporation

2.c Requisition No. 5000221545

3. IGCE/Estimated dollar value.

[REDACTED]

4.a Identification of the circumstances that preclude competition (Check the appropriate box that applies).

☐ Urgency ☐ Exclusive licensing agreements ☐ Brand-name ☐ Industrial mobilization.

☒ Sole Source Vendor

.b Supporting information and facts (i.e. the details surrounding the requirement that supports the selection made in 4.a).

This acquisition is to renew the maintenance/technical support of six OPEX Falcon high-speed scanners. The Falcon scanners process seized financial documents to use as evidence in support of financial crimes cases and projects. The annual maintenance is critical to protect the IRS's investment and must be renewed to ensure that the scanners remain operational and reliable.

There are no re-sellers authorized to perform maintenance on OPEX equipment. All warranty items, as well as all aspects of equipment support, are handled directly through the OPEX World Headquarters in Moorestown, New Jersey. The equipment uses proprietary service diagnostic software covered by various patents and copyrights. OPEX has not released or licensed this software to third parties. To effectively support OPEX equipment, these third parties would have to develop their own diagnostic software. This cost would likely be passed on to the Government.

To avoid limiting competition in the future, DPC has also considered purchasing alternative scanners. However, the implementation of a new brand of industrial scanners would require rigorous testing and a deployment process spanning several months. Such a transition, carries the risk of significant disruptions in workflow, missed project deadlines, and the potential compromise of critical CI mission objectives. Furthermore, this adoption would require a substantial financial commitment, estimated at \$500K. Given the IRS's constrained financial resources, it is necessary to avoid unnecessary expenditures and duplication of costs, particularly considering the limited availability of funds during this period.

Prior Acquisition History:

[REDACTED]

■ Any other important information.

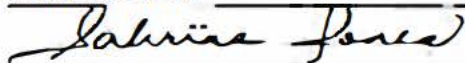
Market research was conducted on the various GSA related websites and NASA SEWP. The results of the market research supported the Government's determination to obtain these services under a sole source basis.

Refer to the SF 1010 Market Research Summary Report for specific details.

6. Certifications and Approvals.

6.a Program Office certification (Requiring Activity). I hereby certify that the supporting information and data provided, and which form the basis for this justification are accurate and complete to the best of my knowledge and belief.

Name: Sabrina Jones



Date: 11/20/2025

Signature:

6.b Contracting Officer approval. In accordance with FAR [13.106-1\(b\)\(1\)](#), as a warranted contracting officer, I hereby determine that the circumstances of the acquisition make only one brand-name or source reasonably available for the reasons provided above; therefore precluding competition and supporting the Government's determination to solicit as a brand-name requirement or solicit and award to the vendor stated in section 2.b.

Name: Denise Alvarez **Date:** 02/19/2026

Signature: Denise G. Digitally signed by Denise G.
Alvarez

Alvarez

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